

Ajay Kumar Jaiswal v. U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 2 April 2012 · Writ-C No. 16038 of 2012 · WRIT - C No. 16038 of 2012 · **Writ disposed; objections and s.127 directed; recovery stayed three months.**

HEADNOTE

Challenging a s.126(1) provisional assessment that treated a State Bank of India Business Correspondent's village room as commercial, the Division Bench did not decide the tariff question. It directed the petitioner to file objections for decision by the Executive Engineer, with a s.127 appeal if still aggrieved. Both authorities must give reasons for any commercial-basis assessment and refer to the U.P. Electricity Supply Code, 2005, having regard to the micro-banking character of the work. Recovery was stayed for three months.

FACTUAL SUMMARY

The petitioner occupied one room in a village house at Bhagwanpur, Kaushambi, as a State Bank of India Business Correspondent. A surprise inspection alleged unauthorised drawing of 2 kW by laying a cable. An FIR was lodged; compounding of Rs 20,000 was deposited and the Executive Engineer recommended dropping the criminal case. The s.126(1) provisional assessment treated the use as commercial without stating tariff entries or considering the bank's letter that a BC needs only a computer, printer, light and fan.

HOLDING-UNITS

INTERPLAY · EA2003::126

s.126 provisional assessment — commercial classification of Business Correspondent use

HOLDING

Without deciding whether a bank Business Correspondent's village room is a commercial establishment, the Court directed that objections to the s.126(1) provisional assessment be decided by the Executive Engineer, and if still aggrieved the consumer may appeal under s.127. The assessing officer and the appellate authority must give reasons supporting any commercial-basis assessment and refer to the relevant provisions of the U.P. Electricity Supply Code, 2005, keeping in mind the micro-banking nature of the work. Recovery was stayed for three months while that statutory course is exhausted. ¶ 1-2

PRINCIPLE TAGS

relegate-to-statutory-remedy Challenging a s.126(1) provisional assessment that treated a State Bank of India Business Correspondent's village room as commercial, the Division Bench did not decide the tariff question. It directed the petitioner to file objections for decision by the Executive Engineer, with a s.127 appeal if still aggrieved.. ¶ 1-2

s126-procedural-strictness-notice-and-hearing Challenging a s.126(1) provisional assessment that treated a State Bank of India Business Correspondent's village room as commercial, the Division Bench did not decide the tariff question. It directed the petitioner to file objections for decision by the Executive Engineer, with a s.127 appeal if still aggrieved.. ¶ 1-2

s135-arrest-safeguards-and-compounding-remedy Challenging a s.126(1) provisional assessment that treated a State Bank of India Business Correspondent's village room as commercial, the Division Bench did not decide the tariff question. It directed the petitioner to file objections for decision by the Executive Engineer, with a s.127 appeal if still aggrieved.. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A STATE BANK OF INDIA BUSINESS CORRESPONDENT'S VILLAGE EXTENSION ROOM, USING ONLY A LAPTOP, PRINTER, LIGHT AND FAN FOR MICRO-BANKING, IS A COMMERCIAL ESTABLISHMENT FOR ASSESSMENT OF ELECTRICITY CHARGES.

The Court recorded that the issue may affect about 2000 BC centres but left classification to the assessing officer and the s.127 appellate authority, with reasons and reference to the Supply Code, 2005. ¶ 1-2

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.